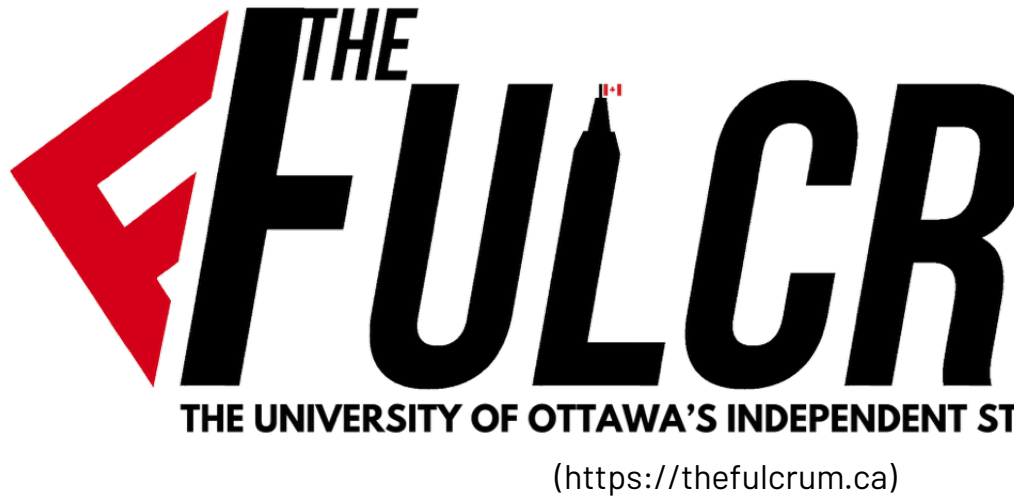


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News

Criminologists want alleged interview with Luka Magnotta kept confidential

 Adam Feibel (<https://thefulcrum.ca/author/news-editor/>)  2013/03/20, 6:54 pm



Reading Time: 4 minutes

Police investigators believe U of O professors interviewed accused killer for sex trade study

(Editor's Note: The following news article won the author an award for best news writing at the 2014 John F. McDonald Awards for excellent in student journalism.)

Two University of Ottawa criminologists are going to court to protect the confidentiality of an interview believed by police to have been conducted with accused killer Luka Rocco Magnotta.

Police believe professors Christine Bruckert and Colette Parent interviewed Magnotta, under the alias "Jimmy," for a study on Montreal sex workers in 2007.

Magnotta and the professors presented two separate motions in the Superior Court of Quebec on March 11 to keep the transcript of an interview from falling into police hands on the basis of “confidentiality privilege.”

Magnotta, 30, is charged with the brutal murder and dismemberment of 33-year-old Concordia University student Lin Jun last May, among other related charges.

Two Montreal police homicide detectives issued a search warrant in June that led to the “seizure of items regarding a confidential interview with a subject named (Jimmy),” according to the motion filed by the professors’ lawyer, Nadine Touma.

Bruckert and Parent are insisting that the contents of their study remain confidential to protect all interview subjects, in this case presumably Magnotta. The professors have published several works concerning the sex trade, for which they interviewed sex workers about their lives and working conditions. The research study in question was conducted by Adam McLeod, a then fourth-year research assistant, on behalf of Bruckert and Parent.

Touma told Superior Court Judge Sophie Bourque that her clients would prefer to resolve the issue before the case goes to trial.

Bruckert and Parent will not comment further on the case. In a written statement, the Canadian Association of University Teachers (CAUT), which represents Bruckert and Parent, said the professors’ work, like many other social and health studies, “depends on pledging and maintaining strict confidentiality to their research subjects.”

“That provides the basis on which researchers can gather information and data to better understand many forms of human behaviour and to provide the basis for appropriate social policy,” the statement read. “...in defending the confidentiality of their research subjects, they are fulfilling their ethical obligations and will continue to do so to the best of their ability.”

James Turk, executive director of CAUT, stressed the importance of confidentiality in social sciences research, since it would become next to impossible for researchers to conduct interviews if the identity of their subjects is not guaranteed to be protected.

“We stepped in because it’s vital that their ability to do research is protected,” said Turk. “We brought the case to the attention of the university. But it’s really disturbing that it refuses to support its professors.”

The U of O issued an official statement regarding its position on the matter, which asserted that the university “does not consider that it is part of its role to pay for legal costs if researchers decide to challenge the seizure of research records in the context of criminal proceedings.”

Third-year criminology and women’s studies student Meg Lonergan has begun organizing a letter-writing campaign for students to protest the university’s stance.

“How do you do research knowing that the police and the government can just come in and say that they have a good enough reason?” said Lonergan. “This doesn’t have anything to do with the trial that’s going

She questions why she would want to pursue graduate studies at the U of O if the university won’t protect her or her research, and believes the case will have an effect on every student in social sciences and epidemiology.

“Anybody who has to talk to people to get research done is getting thrown under the bus,” she said.

Magnotta’s lawyer, Luc Leclair, has refused to comment on the motion or whether his client is the Jimmy interviewed in the study.

Born Eric Clinton Newman, the accused legally changed his name to Luka Rocco Magnotta in 2006. He used the name Jimmy when he appeared as a pinup model in a 2005 issue of Toronto’s *Fab* magazine and became involved in the pornography industry in 2008, appearing in eight films as either Luka or Jimmy.

Magnotta made global headlines last May when body parts were found in a package mailed to the Conservative Party of Canada, in another destined for the Liberal Party that was intercepted at a Canada Post processing facility, and in a suitcase discovered in the alley behind an apartment building in Montreal.

After police quickly identified Magnotta as the main suspect, he fled the country, prompting an international manhunt. On June 1, he was apprehended in an Internet café in Berlin while reading news stories about himself.

Magnotta pleaded not guilty to all charges, including the first-degree murder of Lin, a Chinese international student at Concordia.

The preliminary hearing began March 11. The victim’s father, Diran Lin, flew from China to attend.

Magnotta is also accused of committing an indignity to a dead body; publishing obscene material (video footage was posted under the title "1 Lunatic 1 Ice Pick" on the website Bestgore.com); mailing obscene indecent, immoral, or scurrilous material; and criminally harassing Prime Minister Stephen Harper and several (unnamed) members of Parliament.

Montreal police, the criminology professors, and their representatives will return to court Sept. 7 to set date on which to determine whether the criminologists' motion will be heard during or before the murder trial.

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